KNOXVILLE AREA DSA

Rule on Official Communication Channels

PROPOSED, NOT YET ADOPTED

Knoxville Area Chapter of the Democratic Socialists of America

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Section 1. Purpose, Authority, and Scope

a) **Authority.** This Rule is adopted by the membership under Article XVIII, Section 1(c) of the bylaws of the Chapter. Its subject is reserved to Rule tier through the catchall at Article XVIII, Section 4(b), because Article I, Section 4(f) names the Rule on Official Communication Channels as the instrument under which the Steering Committee designates and publishes official channels for written notice. This Rule also provides for the official Chapter email address (Sections 6 and 7).

b) **Single Authority for Channel Specification.** This Rule is the single authority on which the definition of written notice in Article I, Section 4(f), running in the three directions set out in Section 3 of this Rule, depends for the specification of acceptable channels, including the official Chapter email address this Rule provides for. The division of authority follows Article I, Section 4(f) and Article XVIII, Section 1(c): the membership adopts and amends this Rule, and the Steering Committee specifies and administers the concrete channel designations under this Rule and publishes them on the Chapter website. No designation under this Rule may narrow the definition of written notice in Article I, Section 4(f), and no designation may add a requirement of form that the bylaws and this Rule do not impose.

c) **Load-Bearing Function.** Every notice period in the bylaws and in every Code, Rule, and Policy of the Chapter runs through the channels this Rule governs. This Rule specifies the channels only; it does not lengthen, shorten, or otherwise alter any notice period, quorum, threshold, or right fixed by the bylaws or by another instrument.

d) **Boundary.** This Rule governs official written notice channels only, and the Chapter role addresses as Section 6(e) provides. The common digital platform for member-to-member communication is not an official notice channel and is governed by the Rule on Officer Operating Procedures or by a communications Policy under Article XVIII, Section 1(d), not by this Rule.

e) **Subordination.** This Rule is a Tier 3 Rule. Where it conflicts with the bylaws, a Code, or the national documents, the higher tier controls under Article XVIII, Section 2.

Section 2. Definitions

a) **Written notice** has the meaning given in Article I, Section 4(f), and runs in the three directions set out in Section 3 of this Rule.

b) **Address of record** means the email address for a member on the Chapter membership roster that the Steward maintains in coordination with National DSA under Article IV, Section 7, as most recently provided or updated by the member. A member may update the member's address of record at any time by written notice to the Chapter. For an officer, the address of record also includes any Chapter role address of that officer's office.

c) **Official Chapter email address** means the single email address designated under Section 6 as the Chapter's endpoint for written notice to the Chapter, or to an officer or Chapter body in an official capacity.

d) **Durable written channel** means a channel that satisfies the criteria in Section 6(b) and that the Steering Committee has designated for official notice under Section 6.

e) **Designation** means the Steering Committee's specification, under this Rule, of a durable written channel, of the official Chapter email address, or of a custodian under Section 7.

f) **Mailing address of record** means the postal address the Steward maintains for a member with the roster under Article IV, Section 7, as the Rule on Records Classification and Public Disclosure, Section 7(d) establishes it: a non-residential mailing address, namely a chapter post office box or the member's stated preferred mailing address, as most recently provided or updated by the member. A member may update it at any time by written notice to the Chapter. A member with no mailing address of record on the roster is reached by the other channels in Section 3.

g) **Chapter role address** means an email address at the Chapter's knoxvilledsa.org domain that the Steering Committee lists under Section 6(e) as the address of a Chapter office or body. No address of the confidential reporting channel governed by the Rule on Harassment Grievance Officer Operations is a Chapter role address, and neither is the official Chapter email address or a former one during the period in Section 8(d).

Section 3. Acceptable Channels for Each Notice Direction

a) **Chapter to the Membership.** Notice from the Chapter to the membership is written notice if sent by email to every member's address of record (a member who has withdrawn consent to notice by email being reached as subsection (e) provides), by mail to every member's mailing address of record, or if posted to a durable written channel designated for official notice under Section 6. Email to the membership at the addresses of record is always an acceptable channel in this direction, except as to a member who has withdrawn consent to notice by email under subsection (e), and no designation or change under this Rule may remove it.

b) **Chapter to an Individual.** Notice from the Chapter to an individual member or officer is written notice if sent by email to that person's address of record or by mail to that person's mailing address of record, except that a member who has withdrawn consent to notice by email is reached by mail as subsection (e) provides.

c) **To the Chapter.** Notice to the Chapter, or to an officer or Chapter body in an official capacity, is written notice if sent by email to the official Chapter email address or delivered in writing to the Chapter's registered office or registered agent of record maintained under Article I, Section 3.

d) **Sufficiency of Form.** A formal letter is not required for written notice in any direction, and neither notarization nor a physical signature is required unless applicable law requires it; an email or posting that meets the requirements of Article I, Section 4(f) and this Rule is sufficient. Where applicable law prescribes the form or content of a particular notice or demand, such as a members' meeting demand under Tennessee Code Annotated section 48-57-102 as referenced in Article VI, Section 4, the notice must also satisfy that law.

e) **Opt-Outs from General Chapter Email and Withdrawal of Consent to Notice by Email.** A member's request to stop receiving the Chapter's general or promotional email, including an unsubscribe or opt-out recorded on any platform the Chapter uses to send email, is not a withdrawal of the member's consent to notice by email under Article I, Section 4(f) and does not remove the member's address of record. Where notice under subsection (a) or (b) is given by email, it is sent, whatever the member's opt-out status on a sending platform, to the address of record of each member it must reach other than a member who has withdrawn consent to notice by email, by a means that does not suppress or withhold it on account of that status; a message a sending platform suppresses or withholds on account of an opt-out is not sent to that address for purposes of Section 5. If the sender learns before the relevant deadline that a message was so suppressed or withheld, the sender resends it to that member by a means that does not suppress it, or by mail to the member's mailing address of record, and notice to that member is given when so resent or deposited; suppression as to one member does not change the day notice is given to any other member. A member withdraws consent to notice by email by

written notice to the Chapter asking that notice come by physical mail and stating the postal address to which it is to be mailed, which may be any address the member chooses, a home address included, other than a Chapter post office box (the member's notice mailing address). The Steward (or, while the Steward's position is vacant, the Secretary) records the withdrawal and the notice mailing address with the member's roster record. The notice mailing address is used only to mail that member notice under this Rule; it is not the mailing address of record under Section 2(f) and the Rule on Records Classification and Public Disclosure, Section 7(d), which the withdrawal leaves unchanged, and it never appears on a members' list the Chapter produces under that Rule. Where the member has not stated a preferred mailing address, the Steward (or, while the Steward's position is vacant, the Secretary), on recording the withdrawal, tells the member which address the Chapter will show for the member on any members' list it must produce under that Rule and asks whether the member wishes to state a preferred mailing address. The member then receives each notice under subsection (a) or (b) by mail to the notice mailing address, whatever channel carries the notice to any other member it must reach, deposited no later than the day the notice is given to those other members, if any; that deposit does not by itself fix the day notice is given to any other member under Section 5(a). If it is so deposited, notice to that member is given on the same day as to those other members. If it is deposited later, or the notice goes to that member alone, notice to that member is given on the day of deposit, and any period the notice starts runs for that member from that day. Until a request states a notice mailing address, the Steward (or, while the Steward's position is vacant, the Secretary) asks the member for one, and notice continues to the member's address of record. A member may update the notice mailing address at any time by written notice to the Chapter. A member restores consent to notice by email only by written notice to the Chapter; an update of the member's address of record under Section 2(b), or of either mailing address, does not by itself restore it.

Section 4. Covered Notices and Excluded Messages

a) **Covered Notices.** The channels in Section 3 carry every written notice the bylaws or any Code, Rule, or Policy requires or permits, including, without limitation: a member petition, such as an agenda petition under Article VI, Section 2(a) or a petition to convene a Special Meeting to fill a vacancy under Article XI, Section 3; an amendment submission under Article XX, Sections 1 and 5; a removal petition under Article XI, Section 8; an appeal or a written response in a discipline or grievance proceeding, to the extent it is delivered to the Chapter or to a Chapter body under Article XII, Sections 3 and 5; and a declaration of organizational emergency under Article XV, Section 1. The list in this subsection is illustrative, not exhaustive.

b) **Excluded Messages.** As Article I, Section 4(f) provides, an informal or ephemeral message is not written notice in any direction. Excluded messages include a post in a chat channel not designated for official notice, a direct or private message on any platform, a text message, a

social media post, comment, or story, a voice message, and any message on a channel that deletes or expires content by design. A designation under Section 6 may not qualify an ephemeral channel as a durable written channel.

Section 5. Timing of Notice

a) **Notice from the Chapter.** Subject to Section 3(e), notice from the Chapter is given on the day it is sent to the addresses of record, deposited in the mail to the mailing addresses of record, or posted to a designated durable written channel, whichever applicable act occurs first.

b) **Notice to the Chapter.** Notice to the Chapter, or to an officer or Chapter body in an official capacity, is given on the day it is delivered to the official Chapter email address or to the registered office or registered agent.

c) **Effect of Non-Receipt.** Notice sent by email to the current address of record, or by mail to the current mailing address of record, is effective when sent or deposited, whether or not it is opened or delivered. If the sender learns before the relevant deadline that delivery to an address of record or a mailing address of record failed, the sender shall make a reasonable prompt attempt to resend or to reach the person through another acceptable channel; a good-faith failure of delivery that the sender did not learn of does not invalidate the notice.

d) **Periods.** A period that the bylaws or another instrument measures from written notice runs from the day notice is given under this Section and Section 3(e). This Section supplies the day only; the length of every period is fixed by the instrument that creates it.

e) **Record of Notice.** The officer or Chapter body that gives notice from the Chapter to the membership records the day the notice was given under subsection (a), the day of each deposit in the mail to a notice mailing address and of each resend under Section 3(e), each channel used, and the number of addresses of record, mailing addresses of record, and notice mailing addresses to which it was sent, and delivers that record to the Secretary, who preserves it with the notice under the instruments named in Article XVII, Section 3. A failure to keep or preserve the record does not invalidate a notice validly given.

Section 6. Designation of Channels, the Official Chapter Email Address, and Chapter Role Addresses

a) **Designation by the Steering Committee.** The Steering Committee designates the official Chapter email address, and may designate one or more durable written channels for official notice, by majority vote at a Steering Committee meeting held under Article V, Section 4 and

satisfying the quorum and vote requirements of Article V, Section 5, recording each designation in its minutes.

b) **Durability Criteria.** A channel qualifies for designation as a durable written channel only if it presents the notice in writing, is reasonably accessible without fee to every member in good standing, preserves each notice and its date unaltered at least through the notice period it carries and thereafter as the instruments named in Article XVII, Section 3 require, and is identified on the Chapter website as designated for official notice.

c) **Publication.** The Steering Committee shall publish on the Chapter website, and keep current, the official Chapter email address and the list of designated durable written channels; Article I, Section 4(f) requires the designated channels to be published. A durable written channel carries official notice only while it appears on the published list; the official Chapter email address remains effective for notice delivered to it until a change takes effect under Section 8.

d) **Initial Designation.** The Steering Committee shall make the initial designations under this Section within fourteen days of the effective date of this Rule. Until the initial designations are published, email to the addresses of record is the acceptable channel in the directions it serves under Section 3, the Chapter email address in general use on the effective date serves as the official Chapter email address, and written delivery to the registered office or registered agent serves for notice to the Chapter.

e) **Chapter Role Addresses.** The Chapter's official email addresses are the official Chapter email address and the Chapter role addresses, and of these only the official Chapter email address receives notice to the Chapter, or to an officer or Chapter body in an official capacity. A Chapter role address is an official address of the Chapter for correspondence with the office or body it identifies. It is not an official channel within the meaning of Article I, Section 4(f), nor a channel designated under this Rule, and notice to the Chapter, or to an officer or Chapter body in an official capacity, is not given by delivery to it; it carries written notice from the Chapter to an officer only as part of that officer's address of record under Section 2(b). The Steering Committee shall publish on the Chapter website, and keep current, the list of Chapter role addresses, consistent with the routing table of the Policy on Chapter Email Address Routing while that Policy is in effect. Adding, retiring, or rerouting a Chapter role address is not a designation under this Rule, requires no amendment of this Rule, and is not a change of designation under Section 8.

Section 7. Administration of the Official Chapter Email Address

a) **Custodian.** The Secretary is the custodian of the official Chapter email address unless the Steering Committee designates another officer. The custodian monitors the address regularly, and at minimum weekly.

b) **Routing and Preservation.** The custodian promptly forwards each notice received at the official Chapter email address to the officer or body it addresses and preserves it as a Chapter governance record under the instruments named in Article XVII, Section 3.

c) **No Gatekeeping.** A notice is given when delivered to the official Chapter email address under Section 5(b), regardless of internal routing. The custodian may not screen, reject, edit, or delay any notice, and a notice adverse to the custodian, including a petition or complaint naming the custodian, is forwarded unaltered. A failure of internal routing does not invalidate a delivered notice or restart any period.

Section 8. Changes to Designations

a) **Change Procedure.** The Steering Committee may change any designation under Section 6 by the same recorded majority vote, with written notice of the change to the membership, given through the channels in effect at the time of the notice, at least seven days before the change takes effect, and with the published list under Section 6(c) updated no later than the day the change takes effect.

b) **Failed Channels.** If a designated channel fails or becomes unavailable, the Steering Committee may replace or withdraw its designation with immediate effect, giving written notice to the membership as soon as practicable, and the remaining acceptable channels serve in the interim.

c) **Protection of Running Periods.** No change under this Section may shorten, restart, or defeat a notice period already running, and no change may invalidate a notice validly given, or a petition or submission validly delivered, before the change took effect.

d) **Wind-Down of a Retired Address.** When the official Chapter email address changes, the custodian shall monitor the former address for at least sixty days after the change takes effect, and a notice delivered to the former address during that period is validly delivered.

e) **Membership Authority.** Nothing in this Section limits the authority of the membership, acting through the General Meetings and the Annual Convention as the highest authority of the Chapter under Article VI, Section 1, to amend or rescind this Rule under Article XVIII, Section 1(c) or to direct a change of designation by majority vote at a General Meeting.